UPSC CSE Mains 2027 · GS Paper II

POLITY

Constitutionalism · Rule of law · Separation of powers · Constitutional morality · Living Constitution · Union and its territory · Fundamental Rights: Art 12 · Reservation · Art 19 · Contempt · Media · Right to protest

Handwritten-style notes

Built from the Sarrthi IAS GS-2 Polity handouts: Introduction to Constitution, Union and Its Territory; Fundamental Rights.

Bracket trees · mnemonics · PYQ tags · current affairs

Right column and left binding margin are kept blank for your own use.

Personal study edition · for printing

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CONSTITUTIONALISM · RULE OF LAW

PYQ None quoted in the handout · Polity handout pp. 3–4

✎ *Constitutionalism means a government whose powers are limited by a supreme law. Rule of Law (Dicey) is one tool for that. Know the meaning, the six features, negative vs positive constitutionalism, why codification alone is not enough, Dicey's three principles and the exceptions to equality.*

CONSTITUTIONALISM: MEANING AND FEATURES

Meaning and concept

→ ***powers of the government are not absolute***; they are limited by a body of laws or a supreme law called the ***Constitution***

→ government must subscribe to this body of laws as ***its legitimacy depends on it***; hence constitutionalism ***abhors absolutism***

→ tools to limit government: ***Dicey's Rule of Law*** and ***Separation of Powers***

Features of constitutionalism

→ ***Rule of Law***

→ ***Separation of Powers***

→ ***basic civil liberties*** and protection of people's rights

→ ***Democracy:*** temporariness of government through periodic free and fair elections

→ ***Independent Judiciary***

→ ***Free Media***

DR FISC – Six features: **D**emocracy (periodic elections) · **R**ule of law · **F**ree media · **I**ndependent judiciary · **S**eparation of powers · **C**ivil liberties. (own mnemonic)

Negative constitutionalism (prevent tyranny)

→ idea that the ***State can be a danger or source of oppression*** gained ground in the late medieval and early modern age

→ developed largely among ***Western thinkers*** to ***prevent tyranny by limiting the powers of the government*** after oppression by the ruling class

Positive constitutionalism

→ zeal for limiting power may ***hinder the State from performing basic functions*** (e.g. public order), leading to ***anarchy***; so the State must be empowered

→ government ***must have certain powers to perform its functions properly***

→ balances power to prevent ***tyranny (excess power and abuse)*** and ***anarchy (inadequate power)***

TA – Positive constitutionalism balances **T**yranny (too much power) against **A**narchy (too little). (own mnemonic)

Constitutionalism beyond the written Constitution

→ these principles are ***assimilated into the Indian Constitution to varying degrees***

→ ***mere codification is not a sufficient condition***: principles must be ***implemented and observable to citizens in daily life***

→ ***United Kingdom:*** no single codified Constitution, yet constitutionalism exists

→ so the presence or absence of codification ***does not guarantee*** the presence or absence of constitutionalism

RULE OF LAW

Meaning and concept

→ many have contributed, but ***A. V. Dicey***'s contribution is the most seminal

→ basically the ***supremacy of law over arbitrary power***: government power exercised according to law, and the law itself consistent with constitutional principles

Dicey's principles

→ ***Supremacy of law:*** rule by ***principles of law, not whims and fancies of the ruler***, and the ruler is also subject to law. SC: ***however high a person may be, the law is above them***

→ ***Equality before law:*** all sections of society equally subject to the law of the land. Affirmative action and positive discrimination depart from strict ***formal equality*** but promote ***substantive equality***

→ ***Equality of law administered through ordinary courts:*** today many forums have adjudicatory functions, e.g. quasi-judicial ***CAT, ITAT*** and other tribunals

SEE – Dicey: **S**upremacy of law · **E**quality before law · **E**qual administration through ordinary courts. (own mnemonic)

EXCEPTIONS TO LEGAL EQUALITY

President and Governors: Article 361

→ while in office, ***no criminal proceedings*** can be instituted or continued against them

→ ***no civil proceedings*** for acts in personal capacity during tenure unless ***two months' prior notice*** is given

→ ***no arrest or imprisonment*** process from any court during the term of office

→ a departure from strict formal equality

A. G. Noorani's criticism

→ termed the criminal exemption a ***mindless borrowing from the West***, based on British practice where courts cannot prosecute the ruler

→ in Britain courts are historically tied to the authority of the Crown and the ***sovereign enjoys constitutional immunity***; in India both the President and the courts are ***creations of the Constitution***, so similar provisions are questionable

→ can be abused: ***politicians facing criminal prosecution can be appointed Governors***

→ if introduced today through a constitutional amendment, it would ***not get the approval of the public or the courts***

Other exceptions

→ ***diplomatic immunity***

→ ***parliamentary privileges: Article 105(2):*** an MP is not liable to any court proceedings for ***anything said or any vote given in Parliament or any committee***; protection for speech inside the House, an exception even to defamation law

DPP — Exceptions to equality: **D**iplomats · **P**arliamentarians (Art 105(2)) · **P**resident and Governors (Art 361). (own mnemonic)

Recall drill: cover and answer

Constitutionalism in one line	powers of government limited by a supreme law	Six features	DR FISC
Negative constitutionalism	prevent tyranny by limiting power	Positive constitutionalism	balance tyranny and anarchy; State must have powers
Is codification enough?	No; UK has none yet has constitutionalism	Dicey's three principles	supremacy of law, equality before law, ordinary courts
President/Governor immunity	Article 361; civil notice of two months	MP speech immunity	Article 105(2)
Who called Art 361 mindless borrowing	A. G. Noorani		

⚖ SEPARATION OF POWERS · CHECKS AND BALANCES ⚖

PYQ None quoted in the handout · Polity handout pp. 5–8

✎ *Power should not sit in one institution, so it is split into law-making, law execution and law adjudication. Perfect separation is impossible; India follows a middle path with checks*

and balances. Know the overlaps, why strictness fails, each check, and the India / USA / UK comparison.

MEANING, FUNCTIONS, BENEFITS

Separation of Powers

→ power of government should ***not be concentrated in one institution but divided among them***

→ traditionally ***legislative, executive and judicial/adjudicatory***; in medieval times kings held all, leading to ***absolutism***

→ ***Montesquieu***'s name is indelibly associated with the concept

→ functions: ***law-making*** (legislative) · ***law execution*** (executive) · ***law adjudication*** (judicial)

Benefits

→ ***preserves democracy and rights*** of the people

→ healthy ***division of labour, specialisation and efficiency***

→ ***healthy debate and constructive friction***, so deliberation leads to better outcomes

FUNCTIONAL OVERLAP AMONG ORGANS

Even in the USA, the traditional home of rigid separation, there is dilution. ***Perfect separation is not possible in a modern State*** and is not followed anywhere in the world.

Westminster system

→ in a ***parliamentary system*** separation between legislature and executive is never complete

→ executive = ***permanent bureaucracy*** plus the ***Council of Ministers headed by the PM*** (political executive), who are generally MPs, so a minister is part of ***both*** legislature and executive

→ ***Article 75(5)***: a non-MP can become a minister but must become a member of either House within ***six consecutive months***

→ in the ***USA*** a person cannot be in the Presidential Cabinet and Congress at once: ***the biggest qualification to be a minister in India is a disqualification in the USA***

Delegated legislation

→ law passed in a ***broad skeletal form***; detailed ***rules, regulations and bye-laws*** are framed by the executive

→ law-making is delegated to the executive, a ***subordinate legislature***

Administrative adjudication

→ adjudication is traditionally a judicial function, but here the ***executive carries it out***: e.g. ***district administration (revenue courts)***, tribunals like ***CAT and ITAT***

→ technical matters of adjudication are better handled this way

Judge-made laws

→ where law is ***silent or ambiguous*** the court clarifies it by interpretation: a ***law-making*** function

→ where there is a ***legal vacuum*** the court gives guidelines that function as law, e.g. ***Vishakha Guidelines***

Ordinances

→ urgent need for a law and ***Parliament not in session***: the President can promulgate ***Ordinances under Article 123***

→ function as laws passed by Parliament, subject to constitutional requirements

Regulatory bodies

→ emerged worldwide due to the ***complex modern economy***

→ law-making, implementation and adjudication all vested in them: ***make rules, regulate the sector, penalise defaulters***; e.g. ***SEBI, IRDAI***

MPLADS and Article 372

→ **MPLADS:** an MP's main job is legislating, but here MPs ***identify local needs and recommend works***, a developmental (executive) function; ***overlap of legislative representation and executive functions***, though sanction and implementation stay with administrative authorities

→ ***Article 372:*** pre-Constitution laws could be aligned with the Constitution; this power was with the ***President for the first three years***, so the executive performed ***legislative functions***

MAJOR WAD — Eight overlaps: **M**PLADS · **A**rt 372 · **J**udge-made law · **O**rdinances · **R**egulators · **W**estminster (minister is MP) · **A**dministrative adjudication · **D**elegated legislation. (own mnemonic)

LIMITS OF STRICT SEPARATION

Why rigid separation is not maintainable

→ ***specialisation:*** traditional organs cannot handle all complex functions of modern administration

→ ***speed and efficiency:*** if all tribunal cases went to the judiciary it would be overwhelmed and could not perform its primary functions

→ ***public interest: power is not a property but a means to an end***; if the end (serving people, their welfare) is better served by vesting power in an institution not meant to exercise it, ***so be it***

SSP — Limits of strict separation: **S**pecialisation · **S**peed · **P**ublic interest. (own mnemonic)

SYSTEM OF CHECKS AND BALANCES

India does ***not follow strict, rigid separation*** as in the USA but a ***system of checks and balances*** (term borrowed from the USA): functions are divided among branches and ***each acts as a check on the others*** to prevent abuse of power.

Executive checks the judiciary: appointment of judges

→ on paper the executive has a role (President appoints), but in India the process has come to be ***substantially controlled by the judiciary through the Collegium System***

→ ***USA:*** President nominates, subject to ***Senate confirmation***

→ executive participation helps ensure ***competent judges of integrity***

Legislature checks the judiciary: removal of judges

→ ***Article 124(4):*** SC judge removed by the ***President*** after an ***address by each House***, supported by a majority of the total membership and ***not less than two-thirds of members present and voting***; a corresponding process for High Court judges

→ so difficult that ***not one HC or SC judge has been removed*** through it to date

Judiciary checks the executive and legislature

→ strikes down ***unconstitutional laws*** and ***illegal or unconstitutional executive action***

→ power to determine legality and constitutionality = ***Judicial Review***

Legislature checks the executive

→ laws need ***enactment by the legislature***

→ questions the executive via ***Question Hour, resolutions and debates***

→ extreme case: ***No-Confidence Motion*** against the Council of Ministers in the Lok Sabha

Executive checks the judiciary: clemency

→ power to ***grant clemency*** for punishments after judicial proceedings: ***President (Art 72)*** and ***Governors (Art 161)***

→ a distinct constitutional power, ***not an ordinary appeal***; meant for ***human errors and unduly harsh punishments***

CRJ-NQ — Checks in action: **C**ollegium / appointment · **R**emoval Art 124(4) · **J**udicial review · **N**o-confidence · **Q**uestion Hour · clemency (Art 72, 161). (own mnemonic)

SEPARATION OF POWERS: INDIA, USA, UK

Country	Position (handout)
India	if the offices of **both President and Vice-President** are vacant, the **CJI discharges the President's functions** under the **President (Discharge of Functions) Act, 1969**
USA	no such arrangement: **more rigid** separation than India
UK	**looser** separation than the USA; highest appellate judicial function used to sit in Parliament (**House of Lords**), changed by the **UK Supreme Court in 2009**

India follows a middle path between the rigid USA and the looser UK.

NEED FOR GREATER CHECKS ON THE EXECUTIVE

Why

→ historically **more power gets vested in the executive**

→ if **judicial independence is compromised** and the **opposition is fragmented**, executive rule goes unchecked

→ so a **proactive legislature, discussion and an independent judiciary** are needed, but in contemporary times both are **less effective**

→ **less discussion on Bills in Parliament**; separation exists on paper but may be weakened **in a substantive sense**

Institutional checks on executive power

→ **CAG, ECI, UPSC and CVC** enjoy varying degrees of institutional independence

→ **CAG, ECI and UPSC are constitutional bodies; CVC is a statutory body**

→ so there is no **unbridled exercise of power** by the political executive

CECU — Institutional checks: **C**AG · **E**CI · **C**VC (statutory) · **U**PSC. (The first, second and fourth are constitutional.) (own mnemonic)

Recall drill: cover and answer

Who is linked to Separation of Powers	Montesquieu	Three state functions	law-making, execution, adjudication
Art 75(5) time limit	six consecutive months	Ordinance power	Article 123, when Parliament not in session
Judge removal provision	Art 124(4); special majority; none removed so far	Clemency articles	Art 72 President; Art 161 Governor
Who acts if President and VP posts vacant	CJI, under the 1969 Act	Which is more rigid: India or USA	USA
Constitutional vs statutory checks	CAG, ECI, UPSC constitutional; CVC statutory		

⚖ CRITICAL APPRAISAL OF THE CONSTITUTION · AMBEDKAR'S WARNINGS ⚖

PYQ None quoted in the handout · Polity handout pp. 8–10

✎ *The handout lists five criticisms of the Constitution (borrowed, verbose, bulky, un-Gandhian, inconsistent) and the reply to each. Ambedkar's warnings at the close of the Constituent Assembly are the value-addition.*

CRITICISMS AND REPLIES

Charge 1: un-Indian and borrowed

→ alleged ***slavish imitation of the West*** and a ***carbon copy of the GoI Act, 1935***

→ British frameworks came through laws of ***1861, 1892, 1909, 1919 and 1935***; large parts borrowed from the ***1935 Act***

Reply

→ all provisions were ***debated in the Constituent Assembly*** before adoption: structure was adopted, ***the soul was debated***

→ framed on ***secular democracy***; after many constitutions existed, it would be ***foolish not to look at others***; ideas are ***not the copyright of any country***

→ ***intelligent adaptation, not blind copying***: US ***Bill of Rights vs Part III***

→ ***Granville Austin:*** calling it un-Indian was absurd as ***what constitutes Indianness is not defined***

Charge 2: complicated, verbose language

→ the Assembly was full of ***legal experts***; it is a ***legal document***, so legal jargon is expected

→ ***Ivor Jennings:*** a "***lawyer's paradise***"

Charge 3: too voluminous, and the defence

→ the effort tried to bring ***under one fold the accumulated experience*** of many constitutions

→ deals with ***details of administration***: accounts, audit, public services, elections, languages

→ ***single Constitution for the whole country*** (the US is smaller as states have their own)

→ ***diversity***: special provisions for states, minorities, backward classes; ***Centre-State relations in detail***

→ detail leaves ***minimal ambiguity*** and helps avoid litigation; the ***GoI Act, 1935*** was itself bulky

DISCO — Why bulky: **D**iversity · **I**nstitutional details of administration · **S**ingle Constitution for all · **C**entre-State detail · **O**ne-fold borrowing (1935 Act) and no ambiguity. (own mnemonic)

Charge 4: Ungandhian Constitution

→ allegation that ***Gandhi's ideology is not adequately reflected***; Congress strategy in the struggle was Gandhian, but post-Independence economy and polity took a different approach (***Gandhi's cottage industries vs Nehru's industrialisation***)

→ ***oceanic circles of power:*** power should radiate ***from the village to the Centre, not the reverse***

→ not enforceable: village panchayats went into ***Directive Principles, Article 40*** (non-justiciable)

→ ***Ambedkar*** saw villages as ***dens of darkness*** (casteism, patriarchy, feudalism); local democracy would represent ***local elites***

→ later local self-government got constitutional status via the ***73rd and 74th Amendments***

Charge 5: lack of theoretical consistency

→ India has many ***contradictions***, so the Constitution reflects them

→ provisions of ***modernity (liberty, equality, fraternity)*** and tradition (debates on ***UCC, divorce, adoption***)

→ India is a ***blend of modernity and tradition***; the ***incoherence in society*** gets reflected in the Constitution

BVBUC — Five charges: **B**orrowed · **V**erbose · **B**ulky · **U**ngandhian · **C**ontradictory (inconsistent). (own mnemonic)

AMBEDKAR'S WARNINGS AT THE INAUGURATION

Three warnings plus one need

→ ***constitutional methods:*** mass protests mattered when ***exploited under British rule*** but not after Independence; use constitutional methods to redress grievances and prevent the ***grammar of anarchy***

→ ***no hero worship in politics:*** do not raise leaders to ***divine status***

→ ***political vs socio-economic equality:*** "***entering an era of contradictions***": ***one person, one vote, one value*** in politics, but inequality continues in socio-economic life; so ***political democracy should be used to alleviate socio-economic inequalities***

→ ***need to cultivate constitutional values:*** constitutionalism and constitutional morality must be nurtured in generations to come

CHE — Ambedkar's warnings: **C**onstitutional methods · **H**ero worship no · **E**quality contradiction (+ cultivate morality). (own mnemonic)

Recall drill: cover and answer

Who called it a lawyer's paradise	Ivor Jennings	Who said un-Indian charge was absurd	Granville Austin
Gandhian ideas in the Constitution	village panchayats in DPSP Art 40; later 73rd, 74th Amendments	Gandhi's oceanic circles	power from village to Centre
Ambedkar on villages	dens of darkness	Ambedkar: grammar of anarchy	give up mass protest, use constitutional methods
Ambedkar on hero worship	no hero worship in politics	Era of contradictions	one vote one value vs socio-economic inequality

⚖ CONSTITUTIONALISM IN PRACTICE · INTERPRETATION · CONVENTIONS ⚖

PYQ None quoted in the handout · Polity handout pp. 10-12

✎ *Writing principles down is not enough; political, administrative and social culture decide whether constitutionalism lives. Courts also interpret the Constitution through definitions and several methods, and conventions give it flesh and blood.*

CONSTITUTIONALISM IN PRACTICE

Three cultures decide it

→ ***political culture:*** parties nurture democracy, but often show ***undemocratic culture: family fiefdoms, high-command culture, less scope for dissent, nomination of criminals, vindictive politics after coming to power***; the very institutions meant to preserve constitutionalism undermine it

→ ***administrative culture:*** civil servants must see themselves as ***servants of the people***

→ ***social value system: high tolerance of unethical practices***; e.g. little public outrage at ***extrajudicial police encounter killings***

PAS — Three cultures: **P**olitical · **A**dministrative · **S**ocial value system. (own mnemonic)

CONSTITUTIONAL INTERPRETATION

Need and aids

→ the Constitution must be ***applied correctly***; it is interconnected and must be read in light of its ***overall philosophy and objectives***

→ ***Article 366*** defines many terms (e.g. SCs, STs); ***Article 12*** defines the State

→ ***General Clauses Act, 1897*** (list of legal terms) is applied through ***Article 367***

Methods the Supreme Court has given

→ ***ordinary meaning of English words:*** commonly used meanings unless the context demands otherwise

→ ***preamble:*** provisions amplify the philosophy summarised in the Preamble; of multiple interpretations the one that ***best fits the Preamble's philosophy*** is correct

→ ***progressive interpretation:*** norms change, so read provisions with ***changing social norms*** and emerging conditions; e.g. ***Article 21*** from restrictive to expansive meaning of life, giving shelter to many rights

→ ***purposive interpretation:*** uses the ***purpose or intent*** (Constituent Assembly Debates); read in light of the ***entire Constitution, an ecosystem in itself***, and all parts read together

→ ***harmonious construction:*** where one provision conflicts with another, ***reconcile them and give maximum possible effect***

→ ***liberal interpretation:*** provisions on ***liberty and security of citizens*** interpreted in their favour; e.g. ***privacy, freedom of the press, RTI*** through ***Articles 19 and 21***

OPPHL — Methods: **O**rdinary meaning · **P**reamble · **P**rogressive · **P**urposive · **H**armonious · **L**iberal. (own mnemonic)

ROLE OF CONVENTIONS

Conventions

→ tools used by the judiciary to interpret the Constitution; some conventions of the ***English parliamentary system*** are used by courts

→ the ***US Constitution originally had seven Articles***, supplemented by conventions and practices

→ uncodified but carry ***legitimacy backed by public opinion and political practice***, not necessarily legally enforceable

→ let the Constitution ***adapt without amendment***; courts use them to interpret it; they provide ***flesh and blood to the dry bones of law***

Recall drill: cover and answer

Three cultures	political, administrative, social value system	Article 366 defines	terms like SC and ST
Article 12 defines	the State	General Clauses Act year and link	1897; via Article 367
Six methods of interpretation	OPPHL	Harmonious construction	reconcile conflicting provisions, maximum effect
Liberal interpretation e.g.	privacy, press freedom, RTI via Arts 19, 21	Conventions give	flesh and blood to the dry bones of law

CONSTITUTIONAL MORALITY

PYQ None quoted in the handout · Polity handout pp. 12–13 · current affairs: verify dates

✎ *Constitutional morality is deep commitment to constitutional values even when popular sentiment opposes them. Know Ambedkar's idea, how it differs from public morality, the Navtej and Sabarimala judgments, and the debate on whether courts should use it.*

MEANING AND AMBEDKAR'S IDEA

Constitutional morality is a ***deep commitment to the values of the Constitution***: liberty, equality, fraternity, justice and dignity, ***even when popular sentiment runs against them***.

Dr. B. R. Ambedkar's conception

→ meant ***accepting plural opinions, rejecting coercion, keeping the executive answerable to elected representatives***, and ensuring ***no single person or institution claims absolute authority***

→ ***not a natural sentiment in India***; it had to be cultivated

→ a Constitution can be ***silently subverted*** not by changing its text but by ***distorting how it is administered***

→ courts have built on this: ***protecting minority rights, limiting majoritarianism, keeping all branches in check***

Public morality	***Constitutional morality***
rooted in ***majority beliefs, traditions, customs***	rooted in ***constitutional principles*** (liberty, equality, fraternity, justice)
can be ***majoritarian, regressive, discriminatory***	***inclusive, rights-based, progressive***
subordinate when in conflict	***prevails*** when in conflict

Significance

→ ***protects individual and minority rights*** from majority pressure

→ ***check on the highest functionaries***: ministers, judges, citizens

→ keeps the ***spirit of the Constitution alive*** beyond its text

→ gives courts a tool to ***interpret rights expansively***

PCKI — Significance: **P**rotects minorities · **C**hecks the high · **K**eeps the spirit alive · **I**nterprets rights expansively. (own mnemonic)

JUDICIAL APPLICATION

Landmark judgments

→ ***Navtej Singh Johar v. Union of India (2018)***: SC ***decriminalised consensual same-sex relations between adults*** (Section 377 IPC)

→ ***Indian Young Lawyers Association v. State of Kerala (2018)***: the ***Sabarimala*** judgment on women's entry into the temple

→ in both, ***constitutional morality must prevail over public or social morality*** when they conflict with constitutional rights and values

THE DEBATE

Criticism

→ ***April 2026***: SG ***Tushar Mehta*** in the Sabarimala review argued it should be discarded as a ground of judicial review: "***vague and subjective***", absent from the text, letting courts strike down actions without clear basis

→ ***2018, K. K. Venugopal*** (then AG): "***very dangerous***", could make the SC a ***third chamber of Parliament***

Counter view: Upendra Baxi

→ not a judicial invention: embedded in the ***Preamble, Part III and Part IVA***

→ three ideas: ***equality, liberty, fraternity*** · ***respect for diversity*** · ***Constitution in letter and spirit***

→ protects the ***vulnerable when majority opinion is hostile***; vagueness is inherent in all principles and courts use it through ***reasoned judgments***

Recent (verify): a nine-judge Constitution Bench ***reserved judgment*** on the Sabarimala reference on ***14 May 2026***. Handout view: it is a ***shared responsibility of legislature, executive and judiciary***; discarding it would leave the constitutional spirit vulnerable to the majoritarianism it was designed to check.

Recall drill: cover and answer

Constitutional morality means	deep commitment to constitutional values even against popular sentiment	Ambedkar: not natural, must be	cultivated
Silent subversion happens by	distorting how the Constitution is administered	Navtej Johar 2018	decriminalised consensual same-sex relations (Sec 377)
Sabarimala case 2018	Indian Young Lawyers Association v. State of Kerala	Who called it vague and subjective	Tushar Mehta (SG, April 2026)
Who said very dangerous	K. K. Venugopal (2018)	Baxi: embedded in	Preamble, Part III, Part IVA

⚖ THE CONSTITUTION AS A LIVING DOCUMENT · ARTICLE 21 ⚖

PYQ None quoted in the handout · Polity handout pp. 13–15 · 2025 case: verify

✎ *A living constitution evolves without losing its core identity. Know the seven features that make ours living, five reasons it must be, and the five-stage journey of Article 21 from Gopalan to digital access.*

CONCEPT AND FEATURES

The Indian Constitution is ***not a frozen text***; it is a ***living instrument with capabilities of enormous dynamism***. A living constitution ***evolves with time without losing its core identity***: an ongoing project responding to social, economic and political realities.

What makes it living

→ ***Article 368:*** amendment power; over a hundred amendments since 1950

→ ***amendment procedures: simple majority, special majority, special majority with State ratification***: flexible yet stable; simple-majority changes are made ***outside Article 368***

→ ***Basic Structure Doctrine: Kesavananda Bharati v. State of Kerala (1973)*** keeps amendments within limits

→ ***Judicial Review:*** supported by ***Articles 13, 32, 136 and 226*** (32 and 226 writ jurisdiction; 136 special leave to appeal)

→ ***open-textured language:*** esp. ***Articles 14, 19, 21***

→ ***Directive Principles:*** guideposts to gradually realise socio-economic goals

→ ***constitutional conventions*** develop over time

ABJODDC — Seven features: **A**rt 368 · **B**asic structure · **J**udicial review · **O**pen texture · **D**PSP · **D**ifferent amendment procedures · **C**onventions. (own mnemonic)

Why it is necessary for India

→ ***social:*** gender equality, ***LGBTQ rights***, dismantling caste hierarchies

→ ***economic: 1991 liberalisation, privatisation, globalisation*** forced reinterpretation of socialist provisions

→ ***technological:*** internet, mobile, data, AI, digital identity raise questions on privacy, speech, surveillance

→ ***federal evolution:*** coalition politics, ***cooperative and competitive federalism***

→ ***global engagement:*** treaties, climate agreements, human rights covenants

SETFG — Five drivers: **S**ocial · **E**conomic · **T**echnological · **F**ederal · **G**lobal. (own mnemonic)

Limit: living does ***not*** mean it can mean anything anyone wants. It is bound by the ***values of the Preamble, the limits of the Basic Structure and the discipline of constitutional methods.***

ARTICLE 21: THE LIVING CONSTITUTION IN ACTION

1950
A. K. Gopalan: narrow reading; restrictive ***personal liberty***; rights as separate compartments; "***procedure established by law***" without fairness test

1978
Maneka Gandhi: progressive view; procedure must be ***fair, just and reasonable***; opened a ***whole new world of rights***

PILs
unstated rights read into Art 21 (see list below)

2017
Puttaswamy: ***nine-judge*** bench, unanimous: ***privacy intrinsic to life and liberty*** (physical, informational, decisional); ***overruled ADM Jabalpur (1976)***

Now
dignity in death, partner choice, transgender rights, personality rights, digital access

Rights read into Article 21 (Stage 3)

→ ***livelihood:*** Olga Tellis (1985)
→ ***free legal aid:*** Hussainara Khatoon (1979)
→ ***clean environment:*** M. C. Mehta cases
→ ***education:*** led to ***Article 21A*** by the ***86th Amendment, 2002***
→ ***health:*** Paschim Banga Khet Mazdoor Samity
→ ***shelter:*** Chameli Singh
→ ***speedy trial*** and protection against ***custodial violence***

L-FEEHSS — Stage-3 rights: **L**ivelihood (Olga Tellis) · **F**ree legal aid (Hussainara) · **E**nvironment (M. C. Mehta) · **E**ducation (21A) · **H**ealth (Paschim Banga) · **S**helter (Chameli Singh) · **S**peedy trial. (own mnemonic)

Stage 5: continuing expansion

→ ***right to die with dignity*** (passive euthanasia); ***right to choose a partner***; ***rights of transgender persons***; ***personality rights*** (e.g. Jackie Shroff case)
→ ***right to digital access:*** Pragya Prasun v. Union of India (2025): an ***intrinsic component of the right to life and liberty under Article 21*** (verify)

AMBEDKAR'S INSIGHT

The Constitution is ***not a mere lawyer's document but a vehicle of life, and its spirit is the spirit of the age.*** "***However good a Constitution may be, if those who are implementing it are bad, it will prove to be bad. However bad a Constitution may be, if those implementing it are good, it will prove to be good.***" It lives only when ***institutions and citizens give it life in every generation.***

Recall drill: cover and answer

Living constitution	evolves without losing core identity	Limits on "living"	Preamble values, Basic Structure, constitutional methods
Basic structure case	Kesavananda Bharati (1973)	Judicial review articles	13, 32, 136, 226
Gopalan 1950 vs Maneka 1978	narrow vs fair, just, reasonable procedure	Puttaswamy 2017	nine judges; privacy; overruled ADM Jabalpur
Livelihood / legal aid cases	Olga Tellis / Hussainara Khatoon	Art 21A inserted by	86th Amendment, 2002
Digital access case	Pragya Prasun v. Union of India (2025)		

UNION AND ITS TERRITORY · LINGUISTIC STATES · SMALL STATES · SECOND SRC

PYQ None quoted in the handout · Polity handout pp. 15–17

✎ *After 1947 language became the main basis for redrawing states. Know the arguments for and against, the three committees, Andhra and the 1956 Act, then the small-states debate, the Uttar Pradesh case and the case for a Second SRC.*

LINGUISTIC REORGANISATION OF STATES

After Independence ***language became the main basis*** for reorganising states, replacing the colonial emphasis on ***administrative convenience***. ***1920s:*** Congress accepted it in principle (***Gandhi reorganised Pradesh Congress Committees*** on linguistic lines)

Against

→ ***administrative difficulties*** from numerous linguistic demands
→ ***national integration:*** strong linguistic identities weaken common identity
→ ***secessionism:*** linguistic nationalism may encourage separatism
→ ***regionalism:*** demands for ***jobs, subsidies, benefits*** raise regional hostility

In favour

→ ***administrative efficiency:*** governance in the people's language
→ ***education and culture:*** mother-tongue education
→ ***democratic participation:*** easier engagement
→ ***secular basis:*** alternative to ***religion and caste*** in drawing boundaries

AINR vs AEDS — Against: **A**dministration · **I**ntegration · **N**o secession · **R**egionalism. For: **A**dministration · **E**ducation · **D**emocratic participation · **S**ecular basis. (own mnemonic)

Committee / Commission	Major recommendations
S. K. Dhar Commission (1948)	rejected linguistic reorganisation; favoured ***administrative convenience***
JVP Committee (1948)	***Nehru, Patel, Pattabhi Sitaramayya*** opposed immediate linguistic reorganisation
Fazl Ali Commission (1953)	chair ***Fazl Ali***, with ***K. M. Panikkar and H. N. Kunzru***; rejected ***one state, one language***

DJF — Order: **D**har (no) → **J**VP (not now) → **F**azl Ali (yes, with limits). (own mnemonic)

Major developments

→ ***Andhra State (1953):*** after the death of ***Potti Sreeramulu*** in a hunger strike for a Telugu state; the ***first linguistically reorganised state***
→ ***States Reorganisation Act, 1956: 14 states and 6 Union Territories***

ISSUE OF SMALL STATES

Demand for smaller states persists due to ***administrative convenience, regional identities and development deficits***. Demands: ***Koshal (Odisha), Kodagu (Karnataka), Vidarbha and Konkan (Maharashtra), Bodoland (Assam), Maru Pradesh (Rajasthan), Mithilanchal (Bihar), Gorkhaland (West Bengal)***.

In favour	→ ***administrative convenience:*** large states have varied terrains and priorities; smaller ones are more homogeneous, so planning is easier → ***economic growth:*** higher growth in some cases (Punjab, Haryana; Uttarakhand, Jharkhand, Chhattisgarh) → ***democratic participation:*** capital nearer the people, though not always realised
Issues	→ ***definitional problem:*** what is small or large (population, area, both)? → ***inter-state disputes:*** borders and water → ***fragmentation:*** undoing ***Sardar Patel's*** work → ***no guarantee of human development:*** needs resources, planning, bureaucracy, leadership → ***financial constraints:*** lower resources, costs of capitals, central dependence → ***alternative: decentralisation*** via districts, panchayats, urban local bodies

AEG vs DIFNFA — For: **A**dministration · **E**conomy · **G**rassroots democracy. Against: **D**efinition · **I**nter-state disputes · **F**ragmentation · **N**o human-development guarantee · **F**inance · **A**lternative (decentralise). (own mnemonic)

Democratic decentralisation should be the first line of action, followed by adequate funds and empowerment with ***functions and functionaries***.

Case of Uttar Pradesh	→ ***Ambedkar*** was wary of one huge state; he proposed ***dividing UP into three states*** for ***administrative convenience, disproportionate influence in national politics and better minority representation*** → recent proposals: ***Harit Pradesh, Awadh, Purvanchal, Bundelkhand***; economic viability questions remain → ***counter:*** if smaller is the solution, create ***more districts***; empower local bodies first

CASE FOR A SECOND SRC

Why	→ ***continuing statehood demands:*** reorganisation is an ***evolving exercise, not one-stop*** → ***changing regional realities:*** three decades of LPG reforms caused ***demographic, economic, social, regional imbalances*** and neglect allegations → ***growing population*** in certain states → ***objective decision-making:*** assess on ***administrative convenience, economic viability, development deficits, cultural identity, national unity***, not politics
Way forward	→ ***Second SRC*** with rational, scientific, objective criteria → ***economic viability*** assessment → ***democratic decentralisation*** (funds, functions, functionaries) → ***address development deficits:*** packages, autonomous councils, development boards → ***statehood as a last resort***, not a panacea

SEDAL — Way forward: **S**econd SRC · **E**conomic viability · **D**ecentralise · **A**ddress deficits · **L**ast resort statehood. (own mnemonic)

Recall drill: cover and answer

Dhar Commission year, view	1948; against linguistic, for administrative convenience	JVP Committee members	Nehru, Patel, Pattabhi Sitaramayya
Fazl Ali Commission members	Fazl Ali, K. M. Panikkar, H. N. Kunzru	First linguistic state	Andhra (1953), after Potti Sreeramulu's death
1956 Act result	14 states and 6 UTs	Ambedkar on UP	divide into three states
First line of action on small states	democratic decentralisation	Second SRC criteria	administrative, economic, development, cultural, national unity

DEMAND FOR DELHI STATEHOOD

PYQ None quoted in the handout · Polity handout pp. 17–18 · 2023 Act: verify

✎ *Delhi has an elected government but no control over police, public order and land. Know the constitutional position, the pro and anti arguments, the 2018 and 2023 Supreme Court rulings, the 2023 Act and the way forward.*

CONSTITUTIONAL POSITION

Where Delhi stands

→ national capital, but the elected government lacks full control of ***police, public order and land***

→ ***69th Amendment Act, 1991*** inserted ***Article 239AA***: Legislative Assembly and Council of Ministers

→ designated ***National Capital Territory (NCT)***, administered by a ***Lieutenant Governor*** appointed by the President

→ ***police, public order, land*** are outside the Assembly's competence

→ Parliament retains power to legislate on ***State and Concurrent List*** subjects for Delhi

ARGUMENTS

In favour of statehood

→ ***delay in decision-making:*** Centre handles police, order, land; elected government and LG share some responsibility, so ***fragmented responsibility means fragmented accountability***

→ ***population:*** many full states are smaller than Delhi

→ ***democratic accountability:*** the elected government needs adequate powers; greater autonomy reduces ***LG-government conflict***

Against statehood

→ ***national capital:*** sentimental value for all Indians, cannot be the property of one section; houses ***Parliament, the Supreme Court, foreign missions***

→ ***financial viability:*** an ***urban agglomeration***, industry shifting out due to pollution norms; infrastructure needs large resources

→ ***resource dependency:*** relies on neighbouring states for ***water, power, resources***

→ ***population argument limits:*** many cities exceed small states; should they all be states?

DPD vs NFRP — For: **D**elay · **P**opulation · **D**emocratic accountability. Against: **N**ational capital · **F**inance · **R**esource dependence · **P**opulation argument stretched. (own mnemonic)

JUDICIAL AND LEGISLATIVE DEVELOPMENTS

2018
SC judgment: stressed ***constitutional morality, representative government and collaborative federalism*** in Delhi's administration

2023
SC judgment: the elected Delhi Government has ***legislative and executive powers over services*** except ***police, public order, land***

2023
GNCTD (Amendment) Act, 2023: statutory framework under which the ***Union retains significant control over appointments, transfers and postings*** of officers

Way forward

→ rather than full statehood, focus on ***institutional clarity***: LG in a ***constitutional/ nominal advisory role*** on non-reserved matters

→ ***greater administrative autonomy*** to the elected government over civic governance and public service delivery, while keeping Union control over ***core strategic functions***

Recall drill: cover and answer

Article for Delhi Assembly	239AA via 69th Amendment, 1991	Three subjects outside Delhi Assembly	police, public order, land
Who administers Delhi	Lieutenant Governor appointed by the President	2023 SC ruling	Delhi government controls services except police, public order, land
2023 Act effect	Union keeps control over postings and transfers	Way forward	LG advisory role; more civic autonomy; Union keeps strategic functions

LADAKH · STATEHOOD · SIXTH SCHEDULE

PYQ None quoted in the handout · Polity handout pp. 18–19 · 2025–26 developments: verify

✎ *Ladakh became a Union Territory without a legislature in 2019. Know its set-up, the grievances, the four-point demand of LAB and KDA, why Sixth Schedule is sought, the Centre's position and a balanced way forward.*

CONSTITUTIONAL POSITION AND GRIEVANCES

Position

→ ***J&K Reorganisation Act, 2019*** made Ladakh a separate ***UT without a legislature*** on ***31 October 2019***

→ ***administration:*** ***Lieutenant Governor*** under ***Article 239***, with ***AGMUT cadre*** officers

→ ***local governance:*** two Hill Councils, ***LAHDC Leh and LAHDC Kargil***, with limited autonomous powers

→ ***judiciary:*** shares the ***High Court of J&K and Ladakh***

→ ***representation:*** ***one Lok Sabha seat***, no Legislative Assembly or Chief Minister

Major grievances

→ ***democratic deficit:*** no elected Assembly

→ ***tribal identity:*** fear over ***land, employment, resources***

→ ***ecological vulnerability:*** unregulated ***tourism, mining, infrastructure*** threaten glaciers, water, biodiversity of a fragile high-altitude desert

FOUR-POINT DEMAND

Leh Apex Body (LAB)

→ and ***Kargil Democratic Alliance (KDA)*** demand: ***1)*** full statehood with a Legislative Assembly
→ ***2)*** Sixth Schedule status
→ ***3)*** a separate Public Service Commission
→ ***4)*** two Lok Sabha seats (Leh and Kargil).

SSPL — Four demands: **S**tatehood · **S**ixth Schedule · **P**SC of its own · **L**ok Sabha seats (2). (own mnemonic)

Sixth Schedule demand

→ ***Article 244(2):*** provides ***Autonomous District and Regional Councils*** with powers over land, forests, customs, local administration in specified ***Northeastern tribal areas***
→ ***NCST recommendation (2019):*** Sixth Schedule protection for Ladakh given its predominantly tribal population
→ ***significance:*** tribal self-government, cultural protection, local control over resources and ecological conservation
→ ***requirement:*** a ***constitutional amendment***, as coverage is limited to specified Northeastern states

CENTRE'S POSITION AND WAY FORWARD

Centre's position and developments

→ ***strategic concerns:*** sensitive borders with ***China and Pakistan***
→ ***alternative safeguards:*** ***Article 371-style*** protections for land, culture, employment discussed
→ ***MHA High-Powered Committee*** to negotiate with Ladakhi representatives
→ ***public mobilisation:*** ***Sonam Wangchuk*** and Ladakhi groups: protests, marches, hunger strikes
→ ***2025:*** domicile, reservation, official language and recruitment safeguards, plus Hill Council provisions; ***2026:*** talks continue with differences over the extent of self-government (verify)

Way forward

→ ***democratic representation:*** examine an elected Assembly with national-security safeguards
→ ***constitutional protection:*** Sixth Schedule or Article 371-style
→ ***strengthen Hill Councils*** with ***Funds, Functions and Functionaries (3Fs)***
→ ***local employment:*** recruitment safeguards; separate PSC demand
→ ***sustainable development:*** local say on glaciers, water, fragile ecosystems
→ ***continued dialogue*** with LAB and KDA

DCSLSC — Way forward: **D**emocratic representation · **C**onstitutional protection · **S**trengthen Hill Councils (3Fs) · **L**ocal jobs · **S**ustainable development · **C**ontinued dialogue. (own mnemonic)

A lasting solution must balance ***democratic autonomy, tribal identity, ecological protection and national security***.

Recall drill: cover and answer

Ladakh UT date	31 October 2019, without a legislature	Ladakh administered under	Article 239 by an LG; AGMUT cadre
Hill Councils	LAHDC Leh and LAHDC Kargil	Who makes the four demands	LAB and KDA
Four demands	statehood, Sixth Schedule, own PSC, two Lok Sabha seats	Sixth Schedule article	Article 244(2)
NCST recommendation year	2019	3Fs	funds, functions, functionaries

NATURE OF FUNDAMENTAL RIGHTS · ARTICLE 12 · BCCI

PYQ None quoted in the handout · Fundamental Rights handout pp. 4–7

✎ *Fundamental Rights sit in Part III. Most work against the State, so Article 12 defines who the State is. Courts use tests (statute, control, agency, public function) to decide if a body is State. BCCI is the standing example: not State, but still reachable by writ for public duty.*

WHAT FUNDAMENTAL RIGHTS ARE

Meaning

→ ***rights found in Part III*** of the Constitution

→ rights outside Part III are ***not*** Fundamental Rights: the ***Right to Vote***; the statutory ***Right to Information*** (RTI Act, 2005)

→ but the ***right to know and receive information*** is recognised as part of ***Article 19(1)(a)***

Category	Articles
Right to Equality	Arts ***14–18***
Right to Freedom	Arts ***19–22***
Right against Exploitation	Arts ***23–24***
Right to Freedom of Religion	Arts ***25–28***
Cultural and Educational Rights	Arts ***29–30***
Constitutional Remedies	Art ***32*** (Supreme Court); Art ***226*** gives remedies through High Courts

EFERCC — Categories in order: **E**quality (14–18) · **F**reedom (19–22) · **E**xploitation (23–24) · **R**eligion (25–28) · **C**ultural-educational (29–30) · **C**onstitutional remedies (32). (own mnemonic)

NATURE OF FUNDAMENTAL RIGHTS

Negative rights

→ most rights ***stop the State*** from acting, e.g. denying equality

Positive rights

→ some ***require the State to act***, e.g. education under ***Art 21A***

Vertical application

→ most rights protect ***individuals against the State***

Horizontal application

→ some also bind ***private persons***, e.g. ***Art 17*** (untouchability); other violations by private persons are met through civil and criminal law

Other features

→ ***Justiciable:*** enforced by courts through ***Art 32*** (SC) and ***Art 226*** (HCs)

→ ***Citizens vs all persons:*** some only for citizens (***Art 19***); others for ***all persons including foreigners*** (***Arts 14 and 21***)

→ ***Not absolute:*** subject to ***reasonable restrictions*** on constitutional grounds

Emergency and special cases

→ ***Art 358:*** Art 19 protections are affected during a National Emergency on grounds of ***war or external aggression***

→ ***Art 359:*** President may suspend the ***right to move courts*** for specified rights; ***Arts 20 and 21 enforcement cannot be suspended***

→ ***Art 33:*** Parliament may restrict or remove some rights of ***Armed Forces, public-order forces, intelligence and specified telecom personnel*** for discipline. Example: ***Police Forces (Restriction of Rights) Act, 1966***

Self-executing vs needing a law

→ most rights are ***directly enforceable*** without a law

→ some need a law: ***Art 17*** → Protection of Civil Rights Act, 1955 · ***Art 21A*** → RTE Act, 2009 · ***Art 23*** → laws against trafficking and forced labour

→ ***Art 35*** gives ***Parliament*** law-making power to implement specified rights

ARTICLE 12: DEFINITION OF STATE

Art 12 defines ***State*** for Part III. Since most rights run ***vertically against the State***, we must know who the State is.

State includes

→ ***Government and Parliament of India***

→ ***Government and Legislature of each State***

→ ***Local authorities*** (rural and urban)

→ ***Other authorities*** within India or under the control of the Government of India

Why "other authorities" is the debate

→ wording is ***vague***; State functions are ***dynamic*** and are increasingly ***outsourced*** to bodies acting on its behalf

→ question: can citizens claim Fundamental Rights against these bodies too? The SC has given ***tests***

Judicial tests

→ set up by a ***statute or executive order*** (e.g. RBI)

→ ***substantial financial and administrative control*** by government

→ works as an ***agency or instrumentality*** of the State

→ performs ***sovereign or public functions*** (defence, taxation, law and order)

SFAP — Four tests: **S**tatute-created · **F**inancial and administrative control · **A**gency of State · **P**ublic or sovereign function. (own mnemonic)

Pradeep Kumar Biswas v. IICB (2002): the tests are ***not rigid or isolated***. Overall question: is the body ***financially, functionally and administratively dominated or controlled*** by government? Control must be ***deep and pervasive***; ***mere regulatory control is not enough***.

Is the judiciary "State"?

→ Art 12 does ***not mention*** the judiciary

→ ***judicial functions:*** courts protect rights; decisions are challenged by ***appeal or review***, not under Art 12

→ ***administrative functions*** (staff recruitment and management): judiciary ***can be treated as State***; such acts can be challenged for violating rights

CASE STUDY: BCCI

Facts and Zee Telefilms (2005)

→ BCCI is a ***private society*** registered under the ***Tamil Nadu Societies Registration Act***, yet has a ***near monopoly*** over Indian cricket and selects the national team

→ ***Zee Telefilms v. Union of India (2005)***: Constitution Bench held BCCI is ***not State***: not created by statute · functions important but ***not sovereign***

→ ***yet*** the Court separated ***being State (Art 12)*** from ***performing a public function***: a public duty can attract ***writ jurisdiction of the High Court under Art 226*** even if the body is not State

BCCI is State (argument)	BCCI is not State (argument)
monopoly control over a national sport	not created by statute
public functions affecting careers	no pervasive government control
represents India in international bodies	financially independent, mostly private funds
decisions affect Fundamental Rights	Ajay Hasia and Pradeep Kumar Biswas tests not fully met

Law Commission 275th Report (2018) recommended bringing the BCCI under the ***RTI Act*** because of its public functions. The debate is really about fitting the ***modern administrative State*** into Art 12.

National Sports Governance Act, 2025 (handout; verify details)

→ ***Presidential assent 18 August 2025***; a statutory framework replacing the non-statutory ***National Sports Development Code, 2011***

→ ***National Sports Board (NSB)*** recognises and regulates National Sports Federations, with power to ***suspend or cancel recognition*** for governance failures

→ ***National Sports Tribunal*** for sports disputes

→ recognised bodies must set up ***Ethics, Dispute Resolution and Athletes Committees*** and codes protecting athletes, especially ***women and minors***

→ aims at ***Olympic and Paralympic Charter*** alignment: India's ***2036 Summer Olympics*** aspiration

RTI link and concerns

→ RTI applies if a body is ***substantially financed*** by government, so financially independent BCCI is ***not automatically a public authority***

→ performing public functions ***does not automatically*** make a body ***State (Art 12)*** or a ***public authority (RTI)***

→ concerns: ***over-centralisation*** in the NSB (government role in appointments); conflict of a domestic regulator with the autonomy of ***FIFA and ICC***

Recall drill: cover and answer

Where are FRs found	Part III	Right to Vote is a FR?	No, outside Part III
Art 19 vs Art 14, 21	Art 19 citizens only; 14 and 21 all persons	Cannot be suspended in Emergency	enforcement of Arts 20 and 21
Art 33	restricts rights of armed and police forces; Act of 1966	Four tests of State	SFAP
Pradeep Kumar Biswas 2002	deep and pervasive control; tests not rigid	Is judiciary State	only for administrative functions
Zee Telefilms 2005	BCCI not State; public duty reachable under Art 226	NSGA 2025 assent	18 August 2025; NSB and National Sports Tribunal

⚖ AFFIRMATIVE ACTION · THE CASE FOR AND AGAINST RESERVATION ⚖

PYQ None quoted in the handout · Fundamental Rights handout pp. 7–10

✎ *Affirmative action opens elite positions to groups that were kept out. Ambedkar wanted objective constitutional measures, not waiting for a change of heart. Know the eight arguments for, and the objections with their replies (injustice, merit, caste not class, creamy layer, mismatch).*

MEANING AND TWO APPROACHES

Affirmative Action

→ broader and more refined term than ***reservation***; became prominent when US President ***John F. Kennedy*** used it in an ***executive order in 1961*** for equal opportunity

→ set of ***anti-discriminatory measures*** giving access to ***preferred positions*** (IITs, IIMs, IAS, IPS) to groups who would otherwise be excluded or unrepresented

→ these positions were historically ***monopolised by upper sections*** (gender, caste, class); the State tries to ***alter the social composition of elites***

Gandhian (spiritual) approach

→ Ashwini Deshpande calls it the ***Evangelical Approach***

→ ***moral regeneration of upper castes*** through philanthropic upliftment

Ambedkar's objective approach

→ ***secular***, not spiritual

→ rejected waiting for a ***change of heart***; we cannot wait years for moral regeneration

→ needs ***objective measures***, e.g. constitutional provisions for ***SCs and STs***

ARGUMENTS IN FAVOUR

Eight arguments for

→ ***Historical injustice:*** compensation for centuries of untouchability and deprivation; USA (racial injustice), Australia (Aboriginal communities)

→ ***Division of labourers, not labour:*** work assigned by ***accident of birth***; link between caste and job weaker among upper castes, but lower castes (Dalits, ***manual scavenging***) still face it

→ ***Class and caste coincide:*** lower castes face ***poverty plus social isolation***; Dalits also face ***landlessness***

→ ***Untouchability persists in new forms:*** separate utensils for domestic help, shoes outside the kitchen, trouble renting a home, honour killings over inter-caste marriage, caste preference in matrimonial ads

→ ***Labour-market dualism:*** Ashwini Deshpande on unequal outcomes. ***Thorat and Attewell (2007):*** applications with Hindu non-Dalit, Hindu Dalit and Muslim identities, ***same qualifications***, different outcomes

→ ***Bridging inequality:*** development alone does not close the gap; affirmative action bridges ***equality in law and equality in fact***

→ ***Benefits society:*** not only the individual; promotes the weakest and allows ***full use of the talent pool***

HDC-UL-BB — For: **H**istorical injustice · **D**ivision of labourers · **C**aste-class overlap · **U**ntouchability persists · **L**abour-market dualism · **B**ridging law-fact gap · **B**enefits society. (own mnemonic)

ARGUMENTS AGAINST AND REPLIES

Objection	Reply
Injustice to tackle injustice	unequal starting conditions: a weaker-section candidate cannot compete equally with a dominant-section one
Breeds caste hostility	stratification already created caste distinctions; this is ***corrective justice***
Compromises merit	merit is ***assisted, not inborn***: schooling, family support, absence of discrimination, post-school support
Hurts productivity	***Deshpande and Weisskopf (2012)***, Indian Railways 1980–2002: ***no evidence*** that reservation reduces productivity
Creamy sections corner benefits	need ***better targeting, not abolition***; poor targeting afflicts many schemes
Mismatch hypothesis	dropout needs ***evidence***, not generalising; answer is ***extra and remedial classes, counselling***
Why caste, not class	a poor Dalit faces poverty ***plus*** social isolation and discrimination; quota also fixes ***representation***

IBMPCMC — Objections: **I**njustice · **B**ias-hostility · **M**erit · **P**roductivity · **C**reamy layer · **M**ismatch · **C**lass-not-caste. (own mnemonic)

Answer frame for Mains: ***state the objection, concede what is valid, reply with evidence, then give the reform (targeting, support), not abolition.***

Recall drill: cover and answer

Kennedy and affirmative action	executive order 1961	Gandhi vs Ambedkar approach	moral regeneration vs objective secular measures
Thorat and Attewell 2007	same qualifications, different hiring outcomes by identity	Deshpande and Weisskopf 2012	Railways 1980–2002, no productivity loss
Mismatch remedy	remedial classes and counselling	Why caste not class	caste adds social isolation; quota also gives representation
Corrective justice	reply to the caste-hostility argument		

⚖ BEYOND QUOTA · BETTER TARGETING · CREAMY LAYER · SUB-CLASSIFICATION ⚖

PYQ None quoted in the handout · Fundamental Rights handout pp. 10–14

✎ *Quota alone cannot close gaps, so add support (land, jobs, handholding, diversity index). Then fix targeting: revise lists, apply the creamy layer, sub-classify OBCs (Rohini) and SCs (Davinder Singh 2024). Rohit Nathan (2026) says parental salary alone cannot decide creamy layer.*

QUOTA PLUS POLICY

Idea (Satish Deshpande)

→ ***Quota Plus***: reservation alone cannot solve all socio-economic disadvantage

Limits of quota

→ ***urban vs rural gap***: most backward classes, including Dalits, live in ***rural India*** with poor schooling; quotas in engineering and medical colleges help those ***already able to qualify***

→ ***50% ceiling*** set by the SC (subject to later developments); ***Tamil Nadu*** has historically gone up to ***69%***; raising percentages alone does not remove structural disadvantage

Additional measures

→ ***land reforms*** (many Dalits are landless labourers)

→ ***non-farm employment*** generation

→ setting up ***MSMEs***

→ ***handholding*** of beneficiaries: academic and institutional support in professional colleges

→ ***private sector Diversity Index*** on gender, community, caste

HELM-D — Quota Plus: **H**andholding · **E**mployment off-farm · **L**and reform · **M**SMEs · **D**iversity index. (own mnemonic)

Diversity Index (illustrative)	Class
0 – 0.33	Low diversity
0.33 – 0.66	Medium diversity
0.66 – 1.00	High diversity

Use of the index

→ Centre and States could weigh diversity in ***public procurement and outsourcing***

→ discussed in the ***UPA period***; idea is private-sector diversity ***without relying only on compulsory reservation***

Long-term objective

→ ***Art 334***: original reservation of seats for SCs and STs in ***Lok Sabha and State Assemblies for ten years***; this is ***political***, not jobs or education

→ extended by amendments; ***104th Amendment Act, 2019*** extended it to ***25 January 2030***

→ handout proposal: ***phased reduction*** of dependence on quotas once equal opportunity is reached

BETTER TARGETING

Three tools

→ ***revise backward-class lists*** through the constitutional process: add new groups, remove those that no longer qualify
→ ***creamy layer*** to exclude advanced members; criteria to be ***reviewed regularly***
→ ***sub-classification*** within OBCs: a few communities take a disproportionate share

Justice G. Rohini Commission (2017)

→ appointed under ***Art 340*** to study ***unequal distribution*** of benefits among OBCs in the Central List and suggest ***sub-categorisation within the 27% quota***
→ reported illustrative split into four groups of ***2%, 6%, 9%, 10%***: ***reported proposals, not implemented***
→ report submitted to the President on ***31 July 2023***; submission does not mean implementation

CREAMY LAYER

Meaning and scope

→ stops ***relatively advanced*** members of backward classes from cornering benefits
→ Central framework applies to ***OBC*** reservation in ***jobs and admissions***; income threshold ***₹8 lakh per annum***, with detailed Income/Wealth Test conditions
→ ***SC/ST: Jarnail Singh (2018)*** discussed the principle for promotions; but the Centre and most States have ***no general OBC-style exclusion for SC/ST***, and it is not generally applied to initial appointments

Union of India v. Rohit Nathan (2026) (handout spells it Rohith; verify): Bench of Justices ***P. S. Narasimha and R. Mahadevan*** on UPSC candidates whose parents worked in ***PSUs, banks, private sector***.

What the SC held

→ ***parental salary alone cannot decide*** creamy layer; the ***status and category of the parent's post*** matter
→ ***1993 Office Memorandum*** (based on ***Indra Sawhney 1992***) is the foundation; the ***2004 clarificatory letter*** is ***invalid*** to the extent it changed the 1993 criteria (a clarification cannot add substantive conditions)
→ under the 1993 OM, ***salary and agricultural income are excluded*** from the Income/Wealth Test; parental service status still counts
→ ***Art 14:*** treating PSU and private-sector employees' children differently from similarly placed government employees ***without valid basis*** violates equality
→ creamy layer is rooted in ***substantive equality (Arts 14, 15, 16)***, not mere administrative policy
→ ***Art 142*** used for relief: ***supernumerary posts*** for eligible candidates wrongly denied non-creamy-layer benefit, with a ***time-bound*** process

Critique

→ test may become ***too income-dependent*** though affirmative action targets social discrimination
→ separate treatment of ***agricultural income*** lets prosperous farming families pass the test; benefits may pass ***across generations*** to the better-off
→ but the framework also uses ***parental status*** and other criteria, not only income

SUB-CLASSIFICATION OF SCs: DAVINDER SINGH (2024)

State of Punjab v. Davinder Singh (2024)

→ ***seven-judge*** Constitution Bench, ***6-1***: States may ***sub-classify within Scheduled Castes*** for fairer distribution of benefits
→ recognises that inequality exists ***among SC communities*** themselves

Conditions	→ must rest on ***empirical data*** → cannot be used to ***include or exclude*** communities from the Presidential SC List (***Art 341***) → subject to ***judicial review*** → cannot give the ***entire benefit to one sub-group*** arbitrarily

JEMS — Davinder Singh limits: **J**udicial review · **E**mpirical data · **M**ust not alter Art 341 list · **S**ub-group cannot take everything. (own mnemonic)

Opinions of individual judges on a creamy layer for SCs are ***not*** a universal rule; keep them distinct from an administrative or statutory exclusion.

Recall drill: cover and answer

Quota Plus coined by	Satish Deshpande	Tamil Nadu reservation	up to 69%
Quota Plus measures	HELM-D	Art 334 extended to	25 January 2030 by 104th Amendment (2019)
Rohini Commission	2017, Art 340, report 31 July 2023, 27% OBC split	Creamy layer threshold	₹8 lakh per annum
Rohit Nathan 2026 held	parental salary alone cannot decide; 2004 letter invalid; Art 142 relief	Jarnail Singh 2018	creamy layer idea for SC/ST promotions
Davinder Singh 2024	7 judges, 6-1, SC sub-classification allowed with data	Davinder Singh bar	cannot alter Art 341 list

⚖ DOMINANT CASTE DEMANDS · MARATHA · EWS · EFFECTIVENESS ⚖

PYQ None quoted in the handout · Fundamental Rights handout pp. 14-17

✎ *Backwardness must be shown by current objective data, not past victimhood or votes. Jats were rejected in Ram Singh (2015); the Maratha quota went 16% to 13/12% to struck down (2021), then a 2024 Act is pending. EWS 10% was upheld 3-2 in 2022.*

DOMINANT-CASTE DEMANDS: JAT

Background	→ Centre and States have ***discretion*** in listing communities as OBC, within constitutional safeguards and ***judicial review*** → the ***Jati-Varna link*** is clear at the top and bottom of the hierarchy but ***weaker among middle castes***, so backwardness is contentious → ***2014:*** on the eve of Lok Sabha elections the ***UPA*** decided to include ***Jats in the Central OBC list*** in certain States; critics saw electoral motive
Ram Singh v. Union of India (2015): principles	→ ***historical injustice alone*** cannot identify OBCs; ***present*** social and educational conditions must count → ***continuous evolution*** of backward classes: e.g. recognition of ***transgender persons*** in ***NALSA (2014)*** → ***self-perception cannot be the sole basis***; need ***objective, contemporary data*** (no single time period fixed) → questioned the ***adequacy of material*** behind the Jat decision; need for ***reliable caste-based data***

Vertical discrimination

→ against groups lower in the traditional hierarchy
→ answered by ***Arts 15(4) and 16(4)*** (affirmative action in education and jobs)

Horizontal discrimination

→ cuts across castes: ***women, transgender persons***
→ answered by ***Arts 15(1) and 16(2)***; ***horizontal reservation*** cuts across vertical categories where provided
→ also needs ***attitude and infrastructure change***, not quotas alone

MARATHA RESERVATION: TIMELINE

2014
Maharashtra announces ***16% for Marathas*** and a proposed ***5% for Muslims*** in education and jobs; legal challenges over backwardness, religion and the ceiling

2018
SEBC Act, 2018: ***16%*** for Marathas in education and jobs; challenged in the ***Bombay High Court***

2019
Bombay HC broadly upheld but cut it to ***13% in jobs and 12% in education***

2021
Jaishri Laxmanrao Patil: SC ***struck down*** the 2018 Act; no ***extraordinary circumstances*** to cross the ***50% ceiling***; reaffirmed ***Indra Sawhney (1992)***

2024
new ***SEBC Act***: ***10%*** for Marathas, ***additional*** to existing quotas; challenged on the ceiling. Handout: ***as of October 2026 still before the Bombay HC*** (verify)

SEBC-16-13-10 – Maratha numbers: ***16*** (2018 Act) → ***13/12*** (HC 2019) → ***struck*** (SC 2021) → ***10*** (2024 Act). (own mnemonic)

EWS RESERVATION

Constitutional basis

→ ***103rd Amendment Act, 2019*** added ***Arts 15(6) and 16(6)***: ***10% reservation for Economically Weaker Sections***, subject to conditions

Criticisms

→ ***breaks the 50% ceiling*** of Indra Sawhney
→ Art 16(4) tests are ***backwardness and inadequate representation***; EWS may not meet them
→ ***purely economic criterion***: earlier cases said social backwardness cannot rest on economics alone
→ a separate ***vertical*** category though poverty cuts across communities; ***excludes*** poor persons in SC, ST, OBC groups

Janhit Abhiyan v. Union of India (2022): five-judge bench ***upheld*** the amendment ***3-2***; economic criteria valid; exclusion of SC/ST/OBC upheld. The ceiling and economics points are ***criticisms debated***, not the legal position that invalidates EWS.

EFFECTIVENESS OF RESERVATION

Gains (supporters)	→ ***education gaps*** between SC/ST and general population narrowed → more ***representation*** in services and institutions → rise of a ***Dalit middle class***
Continuing challenges	→ unequal access to ***quality education*** → ***concentration*** of benefits → inadequate representation at ***higher levels*** → judge by ***representation and broader socio-economic progress***

Recall drill: cover and answer

Ram Singh 2015 about	Jat inclusion in Central OBC list rejected	Ram Singh: backwardness needs	objective, contemporary data; not history or self-perception alone
NALSA 2014	transgender persons recognised as socially disadvantaged	Vertical vs horizontal discrimination	caste hierarchy vs cuts across castes (women, transgender)
Jaishri Patil 2021	Maratha 2018 Act struck; 50% ceiling	Maratha 2024 Act	10%, pending Bombay HC (verify)
EWS amendment	103rd, 2019; Arts 15(6) and 16(6); 10%	Janhit Abhiyan 2022	5 judges, 3-2, EWS upheld

ARTICLE 19 · RESTRICTIONS · DEFAMATION · SUBRAMANIAN SWAMY

PYQ None quoted in the handout · Fundamental Rights handout pp. 17-20

✎ *Art 19(1) gives citizens seven (now six) freedoms; each has its own list of grounds for restriction. Speech has the longest list (eight). Press, silence, information and privacy are inferred. Criminal defamation survived in Subramanian Swamy (2016), now sits in BNS s. 356.*

ARTICLE 19(1): THE RIGHTS (CITIZENS ONLY)

Clause	Right	Restriction clause
(a)	freedom of ***speech and expression***	19(2)
(b)	assemble ***peaceably and without arms***	19(3)
(c)	form ***associations, unions, co-operative societies***	19(4)
(d)	move freely throughout India	19(5)
(e)	reside and settle anywhere in India	19(5)
(f)	***omitted*** (property)	-
(g)	practise any ***profession, occupation, trade or business***	19(6)

SAA-MRP — Art 19(1): **S**peech · **A**ssembly · **A**ssociation · **M**ovement · **R**esidence · (f gone) · **P**rofession. (own mnemonic)

GROUNDS OF RESTRICTION

19(2): speech and expression (eight grounds)	→ ***sovereignty and integrity of India · security of the State · friendly relations with foreign States · public order*** → ***decency or morality · contempt of court · defamation · incitement to an offence***

SSF-P-DM-CDI — Eight grounds: **S**overeignty · **S**ecurity · **F**riendly relations · **P**ublic order · **D**ecency-morality · **C**ontempt · **D**efamation · **I**ncitement. (own mnemonic)

Clause	Reasonable restrictions in the interests of
19(3) assembly	sovereignty and integrity · public order
19(4) association	sovereignty and integrity · public order · **morality**
19(5) movement, residence	**general public** · protection of any **Scheduled Tribe**
19(6) profession, trade	**general public**; may also lay down **professional or technical qualifications** and allow **State or State-owned corporations** to carry on a trade, wholly or partly excluding citizens

RIGHTS INFERRED FROM 19(1)(a)

Four inferred rights

→ **Right to silence:** freedom to speak includes, in context, the **freedom not to speak**

→ **Freedom of the press:** expressing other people's views rests on freedom of expression; **not separately listed**

→ **Right to information:** you cannot express well without information; **right to know** is an aspect of 19(1)(a)

→ **Right to privacy:** constant surveillance creates a **chilling effect**; privacy is a Fundamental Right chiefly under **Art 21**, linked with Art 19

SPIP — Inferred from speech: **S**ilence · **P**ress · **I**nformation · **P**rivacy. (own mnemonic)

DEFAMATION

Legal position

→ defamation is a ground in **19(2)**; gives rise to **civil and criminal** proceedings

→ criminal defamation: **Section 356 of the Bharatiya Nyaya Sanhita, 2023**; earlier **IPC Sections 499 and 500**

→ **exceptions** under s.356: good-faith imputations · comment on **public conduct of public servants** · **truth for the public good**

Issues with criminal defamation

→ **public remedy for a private wrong**: civil wrong between parties in most democracies

→ **chilling effect:** self-censorship of journalists and opposition; followers file complaints; social media lets cases be filed in **many parts of the country**

→ **access:** costs and time favour the powerful; the common person struggles

Subramanian Swamy v. Union of India (2016): challenge to IPC 499/500 as an unreasonable restriction on 19(1)(a). **For retention:** State must protect **reputation** (dignity). **SC upheld** criminal defamation: **right to reputation is part of Art 21 (life and dignity)**, balanced against free speech

Recall drill: cover and answer

Art 19(1)(f)	omitted	Art 19 applies to	citizens only
Number of grounds in 19(2)	eight	Grounds for 19(4) association	sovereignty, public order, morality
19(5) special ground	protection of Scheduled Tribe interests	Four inferred rights	SPIP
Criminal defamation now	BNS section 356 (was IPC 499, 500)	Subramanian Swamy 2016	criminal defamation upheld; reputation is part of Art 21

CONTEMPT OF COURT

PYQ None quoted in the handout · Fundamental Rights handout pp. 20–22

✎ *Courts can punish contempt under Arts 129 and 215 and the 1971 Act. The trouble is vagueness: scandalising the court, judge in own cause, intent vs effect. Mulgaokar (1978) says use sparingly; the UK abolished scandalising in 2013. Reform: objective standards.*

MEANING AND TYPES

Constitutional and statutory basis

→ **Contempt of Courts Act, 1971** defines and regulates it
→ **Art 129:** Supreme Court is a **Court of Record** and can punish its own contempt
→ **Art 215:** same for **High Courts**

Civil contempt

→ **wilful disobedience** of any judgment, decree, direction, order, writ or process
→ or **wilful breach of an undertaking** given to a court

Criminal contempt

→ **scandalising** or lowering the authority of a court
→ **prejudicing or interfering** with judicial proceedings
→ interfering with or **obstructing the administration of justice** in any other way

Why the power exists: unpopular rulings can trigger campaigns that undermine the **independence and authority** of the judiciary; without independence the **public interest** suffers.

ISSUES

Five issues

→ **Nemo judex in causa sua** (no one is judge in their own cause): the court whose authority is attacked may itself decide the contempt
→ **Vagueness:** "scandalising the court"; no objective yardstick; broad use **stifles genuine criticism**
→ **Intent vs effect:** proceedings may look at the **tendency** of criticism rather than **mens rea**; relevance of intention depends on the type of contempt
→ **Impression of infallibility:** judges are human; just criticism of a judge is not criticism obstructing the institution
→ **Judge vs court:** contempt of court is not contempt of an individual judge; the line blurs

NVIJ — Issues: **N**emo judex · **V**agueness · **I**ntent vs effect · **I**nfallibility · **J**udge vs court. (own mnemonic)

In Re S. Mulgaokar (1978): Justice **V. R. Krishna Iyer**: judges should have **broad shoulders**; protect the **administration of justice**, not the personal reputation of judges.

Mulgaokar guidelines

→ **sparing use**; not every criticism merits contempt
→ act seriously when an attack is **calculated to obstruct or destroy** the judicial process
→ **distinguish judge from court**
→ **press freedom:** the press may criticise courts within responsible limits
→ **judicial restraint** even if language is harsh
→ for **malicious or intimidatory** attacks, use contempt in the public interest

SAFEGUARDS IN THE 1971 ACT

Section 13 and Section 15

→ **s.13:** no sentence unless the contempt ***substantially interferes*** with due course of justice; after the ***2006 amendment truth is a defence*** if in ***public interest*** and ***bona fide***

→ **s.15:** criminal contempt (other than in the court's presence): ***suo motu*** by SC or HC; consent rule does ***not restrict suo motu*** jurisdiction

COMPARISONS AND REFORM

Country	Position
UK	***abolished scandalising the judiciary*** as contempt in England and Wales in ***2013***; "old fools" illustration: being old is a fact, being a fool is opinion
USA	strong free-expression protection; contempt is ***more restrictive*** for criticism outside the courtroom

Reform agenda

→ ***objective standards*** in place of vague phrases (Art 19(1)(a) compatibility)

→ ***criticism is not obstruction***; keep contempt for conduct that obstructs justice

→ ***judicial accountability:*** criticism improves institutions

→ protect the ***administration of justice, not judges' reputation***

Recall drill: cover and answer

Contempt Act year	1971	Articles on contempt power	129 (SC) and 215 (HC)
Civil contempt	wilful disobedience or breach of undertaking	Criminal contempt	scandalising, prejudicing proceedings, obstructing justice
Nemo judex	no one is judge in their own cause	Mulgaokar 1978 words	broad shoulders (Krishna Iyer)
Truth as defence	section 13, after 2006 amendment, public interest and bona fide	UK abolished scandalising in	2013

BOOK BANS · SEDITION · OBSCENITY · FILM CERTIFICATION · SECTION 66A

PYQ None quoted in the handout · Fundamental Rights handout pp. 23-27

Controversy alone does not justify a ban; the State must stay inside Art 19(2). Sedition (s.124A) was read down in Kedar Nath, put in abeyance in 2022 and replaced by BNS s. 152. Obscenity moved from Hicklin to community standards. Section 66A fell in Shreya Singhal (2015).

BANNING OF BOOKS

Position and arguments against bans

→ restrictions only on grounds in ***Art 19(2)***; a book being ***controversial, unpopular or offensive*** is not enough

→ ***freedom of expression*** central to liberal democracy, even for unpopular ideas

→ ***right to receive information:*** bans hurt ***readers*** too

→ ***chilling effect:*** writers and historians self-censor

→ ***threat of violence:*** the State should not reward it by suppressing lawful expression; it must ***protect expression and keep order***

S. Rangarajan v. P. Jagjivan Ram (1989): expression cannot be suppressed because of ***threatened demonstrations or violence***; State must protect lawful expression; need a ***proximate connection*** to harm, not ***illusory or remote*** threats. A film case, but applies to books too.

SEDITION

History

→ colonial offence put in the **IPC in 1870**; used against **Tilak** and against **Gandhi (1922)**

→ **IPC s.124A:** hatred, contempt or **disaffection** against the government established by law; criticised for vague wording and misuse against journalists, activists, students and opponents

Kedar Nath Singh v. State of Bihar (1962): SC **upheld s.124A** but **restricted it** to speech or acts involving **incitement to violence or tendency to create public disorder**. Strong criticism of government alone is not sedition.

Issues

→ **colonial legacy**

→ **misuse against dissent**

→ **chilling effect** on 19(1)(a)

→ **government of the day is not the State or the nation**

1870
sedition enters the **IPC**

1922
Gandhi prosecuted

1962
Kedar Nath: upheld but read down

2022
SC directs **s.124A be kept in abeyance**; deals with fresh and pending cases

1 Jul 2024
BNS in force; **124A not retained**; **s.152 BNS** introduced

BNS Section 152: acts endangering sovereignty, unity and integrity

→ covers purposely or knowingly **exciting secession, armed rebellion, subversive activities**, encouraging **separatist feelings**, endangering sovereignty, unity, integrity

→ by **words, signs, visible representation, electronic communication, financial means** or otherwise

→ punishment: **life imprisonment or up to seven years**, plus fine

→ **Explanation protects lawful criticism:** disapproval of government measures to get them changed by **lawful means**

→ **critics:** "subversive" and "separatist" need careful reading or can catch dissent; must satisfy **19(1)(a) and 19(2)**

OBSCENITY

1868
Hicklin test: obscene if it can **deprave and corrupt** susceptible minds; isolated passages can be judged

1965
Ranjit Udeshi: SC applied Hicklin; upheld conviction over sale of **Lady Chatterley's Lover**

2014
Aveek Sarkar: SC **rejected Hicklin**; **contemporary community standards**; judge the **work as a whole** in context; **mere nudity is not obscenity**

Law and balance

→ earlier **IPC 292–294**; now **BNS 294–296**; online: **IT Act ss.67 and 67A**

→ sexuality or nudity is **not automatically obscene**; balance **artistic expression** with **decency and morality**

HRA — Obscenity tests in order: **H**icklin (1868) → **R**anjit Udeshi (1965, applied it) → **A**veek Sarkar (2014, community standards). (own mnemonic)

FILM CERTIFICATION

Framework

→ cinema is protected by **19(1)(a)** subject to **19(2)**

→ **CBFC:** statutory body under the **Ministry of Information and Broadcasting**, set up under the **Cinematograph Act, 1952**; films need **prior certification** (pre-censorship)

→ **K. A. Abbas (1970):** upheld pre-censorship with safeguards because of the film's **visual and emotional impact**

→ **Rangarajan (1989):** no suppression for threats of protest; **no Heckler's Veto**

Certificate	Meaning
U	unrestricted public exhibition
UA 7+	parental guidance below 7
UA 13+	parental guidance below 13
UA 16+	parental guidance below 16
A	adults only
S	restricted to a specified profession or class

Cinematograph (Amendment) Act, 2023

→ **age-based** categories UA 7+, 13+, 16+

→ **perpetual validity** of certificates (earlier 10-year limit removed)

→ **anti-piracy** provisions on unauthorised recording and exhibition

→ removed the **Centre's revisional powers under s.6(1)**, consistent with **K. M. Shankarappa**

→ **Cinematograph (Certification) Rules, 2024:** online applications, transparency, priority screening

Issues

→ **subjectivity**

→ **paternalism** toward adults

→ **political influence**

→ **chilling effect** (cuts, delays)

→ certification should **guide, not censor**

Current affairs (verify): the **September 2026** magazine reports **New Guidelines for Film Certification 2026** from MIB, superseding the 1991 notification, with categories **U/A 7+, 13+, 16+, A and Specialized**. Check the exact text before quoting.

SECTION 66A, IT ACT

What it was

→ inserted by the **IT (Amendment) Act, 2008**, in force **2009**; up to **3 years** and fine

→ **problems: vague terms, arbitrary use** against criticism, **chilling effect**; mere annoyance is **not a 19(2) ground**

Shreya Singhal v. Union of India (2015)

→ SC **struck down s.66A** as violating **19(1)(a)**, not saved by 19(2). Principles: **discussion and advocacy are protected**, only **incitement** tied to a 19(2) ground can be restricted

→ **vagueness**

→ **overbreadth**

→ **chilling effect. 2022:** cases still being filed; SC said **no one can be prosecuted under 66A** and ordered references removed from pending cases.

Significance

→ **online speech** is protected by 19(1)(a)

→ cannot criminalise speech for being **annoying, inconvenient or offensive**

→ restrictions must be **clear, reasonable, within 19(2)**

→ reaffirms ***judicial review***

Recall drill: cover and answer

Rangarajan 1989	no ban due to threatened violence; proximate link needed	Sedition in IPC year	1870
Kedar Nath 1962	s.124A upheld but limited to incitement to violence or public disorder	2022 sedition order	kept in abeyance
BNS in force	1 July 2024; s.152 replaces sedition in spirit	s.152 punishment	life or up to 7 years plus fine
Hicklin to Aveek Sarkar	depraving minds to community standards, work as a whole	CBFC under	Cinematograph Act 1952
K. A. Abbas 1970	pre-censorship upheld	Shreya Singhal 2015	s.66A struck down; vagueness, overbreadth, chilling effect

FREEDOM OF SPEECH AND EXPRESSION · SIGNIFICANCE · BALANCE · THREATS

PYQ None quoted in the handout · Fundamental Rights handout pp. 27–28

✎ *Speech has value in itself, keeps democracy accountable, builds community, drives change and the marketplace of ideas. Restrictions must be proportionate; err on the side of freedom. Threats: old laws, weak politicians, weak courts, compliant media, Heckler's Veto, pliant officials.*

WHY FREEDOM OF SPEECH MATTERS

Five reasons

→ ***Inherent value:*** a faculty unique to humans (imaginative and visual communication); ***expression of human nature***

→ ***Cornerstone of democracy:*** accountability through free media and criticism; not absolute, but society must ***tolerate unpopular views*** (Galileo, Socrates)

→ ***Enables community life:*** minorities feel they belong only if their views are heard; collective life needs ***equal worth of views***

→ ***Enables progressive change:*** women's suffrage, workers' conditions, African American voting rights; better governance through ideas and criticism

→ ***Promotes innovation: marketplace of ideas***; best ideas gain acceptance; contest refines ideas

ICC-PI — Significance: **I**nherent value · **C**ornerstone of democracy · **C**ommunity life · **P**rogress · **I**nnovation. (own mnemonic)

BALANCING FREEDOM AND RESTRICTION

Proportionality

→ freedom is ***not absolute***: it must not become a tool for mischief or for violating others' rights

→ restrictions must be ***proportionate***: only as wide as the objective needs

→ when in doubt, ***err on the side of freedom***

→ ***Example:*** banning two-wheelers to stop road accidents is ***over-restriction***; tackle the causes of accidents instead

Current affairs (verify): the ***August 2026*** magazine notes ***In Re Noise Pollution (2005)***: Art 19(1)(a) does ***not*** permit ***amplified noise*** that violates others' rights. Use it as a boundary example for speech vs others' rights.

THREATS TO FREEDOM OF SPEECH IN INDIA

Five threats

→ ***Obsolete colonial laws*** and moral standards not revised for modern times

→ ***Weakness of the political class*** in amending or repealing restrictive laws; misuse to silence dissent

→ ***Weakness of the judiciary:*** reluctance to strike down or narrow such laws; sedition shows a law can ***chill speech even with few convictions***

→ ***Weakness of media and publishers:*** aligning with government; publishers ***withdrawing books under threat*** = ***Heckler's Veto***

→ ***Moral corruption of officials:*** carrying out orders under political pressure despite weak charges

OPJMO — Threats: **O**bsolete laws · **P**oliticians · **J**udiciary · **M**edia and publishers · **O**fficials. (own mnemonic)

Heckler's Veto: the threat of disruption or violence by one group effectively silences a speaker. The remedy (Rangarajan): the State must protect lawful expression and keep order, not give in to the heckler.

Recall drill: cover and answer

Five reasons FoSE matters	ICC-PI	Marketplace of ideas means	free contest of ideas refines them
Proportionality example	two-wheeler ban for accidents is over-restriction	Five threats	OPJMO
Heckler's Veto	threat of disruption silences speech	Noise pollution case 2005 (verify)	amplified noise not protected by 19(1)(a)

FREEDOM OF THE PRESS · ROLE OF MEDIA · ISSUES · TRIAL BY MEDIA

PYQ None quoted in the handout · Fundamental Rights handout pp. 29–32

Press freedom is inferred from Art 19(1)(a). Media is a civic forum and watchdog; Sen's China example shows what censorship costs. Problems: ownership concentration, paid news, conflicts of interest, trial by media (Sahara, postponement), TRP-driven sensationalism.

CONSTITUTIONAL BASIS AND ROLE

Basis

→ press freedom is ***not named*** in the Constitution; it is ***inferred from Art 19(1)(a)***

→ ***NCRWC*** recommended explicit recognition in Art 19

Role of media in a democracy

→ ***civic forum:*** a "parliament of citizens"; public discussion, debate, criticism

→ ***watchdog:*** speaks truth to power; more press freedom, ***more accountability***; modern democracy is ***mediated***

→ ***adversarial relationship*** (slightly) with government is a ***sign of health***

→ ***protective:*** voice to the voiceless, helps welfare of weaker sections

→ ***information:*** censorship leaves citizens, then government, less informed and weakens feedback

→ ***value creation:*** brings attention to disasters and neglected issues (health facilities, malnutrition, road accidents, schools) and shapes what the government treats as important

CWAPIV — Roles: **C**ivic forum · **W**atchdog · **A**dversarial · **P**rotective · **I**nformation · **V**alue-setting. (own mnemonic)

Amartya Sen's example: in the ***Great Chinese Famine (1958–61)***, censorship meant even officials lacked reliable information on the crisis; absence of free information and criticism worsened the disaster. A free press helps governments see and answer suffering.

ISSUES AND CHALLENGES

Press freedom in India

→ many registered publications and channels suggest a vibrant space, but ***numbers do not prove freedom***

→ ***World Press Freedom Index (RSF)*** ranks countries. Rank figures in the lecture are ***year-specific***, not the present rank (check current RSF)

Concentration of ownership

→ readership and viewership concentrated in a few entities; easier for the powerful to influence

→ owners have other businesses and dealings with government (contracts, approvals) and links with parties

→ ***Murdochisation:*** one entity dominating ***print, TV and radio***; reduces diversity; limits on ***cross-media concentration*** argued for

Media corruption

→ ***Paid news:*** payment-influenced content presented as news; ***not a separate offence*** under the ***RPA 1951*** by that label, though conduct may fall under other laws

→ ***Conflict of interest:*** outlets holding ***equity in businesses*** they then cover

TRIAL BY MEDIA

Meaning and rights hit

→ media acts as ***judge, jury and executioner***: a ***Kangaroo Court*** (body without legitimate authority acting as a court); Khap Panchayats criticised similarly

→ ***reputation*** (Art 21 dignity): guilty before the verdict

→ ***privacy:*** excessive reporting of personal details

→ ***fair trial:*** pressure on the judiciary, loss of ***presumption of innocence***, interference with administration of justice

Sahara India Real Estate v. SEBI (2012): Doctrine of Postponement. If immediate reporting creates a ***real and substantial risk*** to a fair trial, the court may order a ***temporary postponement***, with strict safeguards: ***necessary and proportionate***; balance fair trial with public information.

COMMERCIALISATION OF MEDIA

Advertisement-driven journalism

→ "***Good news is no news***": chase for ads and ***TRPs*** fuels sensationalism

→ the ***Chinese Wall*** between editorial and marketing has been ***breached*** (it should stop commercial pressure on editorial decisions)

Sensationalism: five forms

→ ***exclusive stories*** chased for TRPs

→ ***breaking news*** on unfinished stories: inaccuracy

→ ***commodification:*** serious news packaged as entertainment

→ ***yellow journalism:*** little researched content, ***sensational headlines***

→ ***gonzo journalism:*** reporter becomes part of the story; deliberately subjective, ***not necessarily unethical***

→ ***post-truth:*** emotion and belief outweigh objective facts

EBCYGP — Sensationalism: **E**xclusives · **B**reaking news · **C**ommodification · **Y**ellow · **G**onzo · **P**ost-truth. (own mnemonic)

→ no uniform professional licence; course quality varies

Poor quality of journalism	→ need better **education and training standards without hurting independence**

Recall drill: cover and answer

Press freedom basis	inferred from Art 19(1)(a)	NCRWC recommendation	explicit press freedom in Art 19
Sen's example	Great Chinese Famine 1958–61	Murdochisation	one entity dominating print, TV, radio
Paid news in RPA 1951	not a separate offence by that label	Kangaroo court	acts as court without legitimate authority
Sahara v. SEBI 2012	doctrine of postponement	Chinese Wall	editorial separate from marketing
Gonzo journalism	subjective, reporter involved, not necessarily unethical		

REGULATION OF MEDIA · PRESS COUNCIL · FDI · IT RULES, 2021

PYQ None quoted in the handout · Fundamental Rights handout pp. 32–37

✎ *Self-regulation is toothless (Katju); government regulation is risky; the ideal is independent external regulation. Know the bodies, the Press Council make-up, FDI limits, the Programme Code, and the IT Rules 2021 (intermediaries, SSMIs, traceability, three-tier grievance, OTT).*

NEED AND BODIES

Why independent regulation	→ media is meant to be **adversarial**, so government regulation can harm media and society → self-regulation is the ideal on paper, but **Justice Markandey Katju**: self-regulation equals **no regulation** → so **external regulation independent of government** is more prudent → **Leveson Inquiry (UK, 2012)** after the **News of the World phone-hacking** scandal backed stronger independent press regulation

Body	Scope
BCCC (Broadcasting Content Complaints Council)	self-regulation of **non-news** broadcasting content
NBDSA (News Broadcasting and Digital Standards Authority, earlier NBSA)	self-regulation of **news broadcasting**
ASCI (Advertising Standards Council of India)	self-regulation of **advertising** standards

Critics call self-regulatory bodies **toothless**: weak enforcement powers.

PRESS COUNCIL OF INDIA

Composition	→ statutory body under the **Press Council Act, 1978**; **Chairperson + 28 members**; chair traditionally a **retired SC judge** → **20** represent the press · **5** from Parliament · **1** Bar Council of India · **1** UGC · **1** Sahitya Akademi

20-5-1-1-1 — PCI 28: **20** press + **5** Parliament + one each from **Bar Council, UGC, Sahitya Akademi** (20+5+3 = 28). (own mnemonic)

Functions and limits

→ two functions: ***preserve press freedom*** and ***maintain standards and ethics*** of journalism

→ scope mainly ***newspapers and news agencies***; cannot directly regulate ***TV and online***; limited enforcement, so demands for stronger comprehensive regulation

FDI IN NEWS MEDIA

Category	FDI limit	Route
Print (news and current affairs)	***26%***	Government approval
Digital news media (specified activities)	***26%***	Government approval
TV news and current affairs channels	***49%***	Government approval

Case for liberalising

→ ***First Press Commission (1955)*** feared excessive foreign control

→ but print still has ***monopolies and concentration***

→ more investment could help ***small newspapers survive***, with ***editorial control kept domestic***

GOVERNMENT SUPPRESSION OF MEDIA

Pressure routes

→ legislation, executive action, ***licensing, advertising policy***, regulatory pressure

Illustrations

→ ***Yakub Memon coverage (2015):*** notices reportedly sent to ***ABP News, Aaj Tak, NDTV*** under the ***Programme Code*** of the ***Cable Television Networks Rules, 1994***

→ ***Programme Code bars:*** offences to good taste or decency · content inciting ***violence or public disorder***. ***Criticism:*** vague words allow arbitrary use

→ ***denial of government advertising*** to particular outlets: indirect pressure on press freedom

DIGITAL NEWS AND THE IT RULES, 2021

Why digital news is hard to regulate

→ internet keeps ***evolving***; fixed classes can force structures

→ ***convergence:*** TV channels also online

→ ***foreign ownership*** in some platforms

→ ***borderless:*** news in the USA is read in India

→ ***platforms*** (Google, Facebook) distribute news: publisher vs intermediary vs distributor

Scope

→ ***IT (Intermediary Guidelines and Digital Media Ethics Code) Rules, 2021***, under the ***IT Act, 2000***

→ ***intermediary:*** receives, stores or transmits records for another (Facebook, WhatsApp, YouTube, Instagram); ***digital news and OTT publishers are not automatically intermediaries***

→ ***reasons:*** fake news · hate speech and security threats · abuse · incitement · ***morphed pictures of women*** · defamation. ***Tehseen Poonawalla (2018)*** (mob lynching guidelines

Due diligence by intermediaries

→ ***inform users*** of rules, privacy policy, user agreement

→ ***act on lawful orders*** to remove or disable unlawful content

→ ***retain information*** for prescribed periods (***180-day*** requirements in defined cases, not for every deleted item)

→ ***grievance redressal*** mechanism

Significant Social Media Intermediaries (SSMI)

→ threshold originally ***50 lakh registered users*** in India

→ extra duties: ***Chief Compliance Officer*** · ***Resident Grievance Officer*** · ***Nodal Contact Person*** (24x7 with law enforcement) · ***monthly compliance report***

CRNM — SSMI four: **C**hief compliance officer · **R**esident grievance officer · **N**odal person · **M**onthly report. (own mnemonic)

First originator (messaging SSMIs)

→ must enable identification of the ***first originator*** on a ***judicial or authorised government order***, for serious offences (sovereignty, security, public order, sexual violence)

→ ***concerns:*** breaks ***end-to-end encryption***; ***privacy (Art 21)*** needs legality, necessity, proportionality; security and business interests

Tier	Grievance mechanism for digital publishers
1. Publisher	appoint a ***Grievance Redressal Officer***; resolve within the prescribed period (originally ***15 days***)
2. Self-regulatory body	of publishers, if complainant is not satisfied
3. Government oversight	***Central Government and an Inter-Departmental Committee***; criticised as ***government-run final oversight***

Other provisions

→ ***emergency blocking*** directions under the specified process: censorship worries

→ ***OTT classification:*** ***U, U/A 7+, 13+, 16+, A***; ***parental controls*** and ***age verification*** for adult content

→ ***code of ethics:*** digital news publishers follow the ***PCI Norms of Journalistic Conduct*** and the ***Programme Code*** (rules built for old media on new platforms)

ISSUES WITH THE IT RULES, 2021

Eight issues

→ ***Safe harbour (Section 79, IT Act):*** conditional protection from liability for third-party content; lost if due diligence is not followed

→ ***Encryption and privacy:*** traceability may risk mass surveillance

→ ***Limited consultation*** across publishers, tech firms, civil society, users

→ ***Excessive delegated legislation:*** rules cannot go beyond the parent Act; a fuller statute may be needed

→ ***Unreasonable restrictions and censorship:*** test against 19(1)(a) and 19(2)

→ ***Compliance burden***, especially for small digital outlets

→ ***Legacy media*** online may face overlapping print, TV and digital rules

SELDUCL — Issues: **S**afe harbour · **E**ncryption · **L**imited consultation · **D**elegated legislation · **U**nreasonable restriction · **C**ompliance burden · **L**egacy media overlap. (own mnemonic)

Balance: Big Tech shapes public discourse and the State must protect security and order, so regulation within constitutional limits is valid; but it must respect ***privacy and free speech***. The digital space is still evolving.

Recall drill: cover and answer

Katju on self-regulation	equal to no regulation	Leveson Inquiry	UK 2012 after phone hacking
PCI Act and size	1978; chair plus 28 members	PCI 28 members	20 press, 5 Parliament, 1 each Bar Council, UGC, Sahitya Akademi
FDI print / digital / TV news	26 / 26 / 49 per cent, government route	Programme Code under	Cable Television Networks Rules, 1994
IT Rules 2021 SSMI threshold	50 lakh users	SSMI four officers	CRNM
Three tiers	publisher, self-regulatory body, government committee	Section 79	safe harbour for intermediaries

RIGHT TO PROTEST

PYQ None quoted in the handout · Fundamental Rights handout pp. 37–38

✎ *Protest is derived from Arts 19(1)(a), (b), (c) and linked to Art 21. It is subject to reasonable restrictions. Amit Sahni (Shaheen Bagh) says no indefinite blocking of roads; Himat Lal says no unrestricted right but no blanket ban; Rangarajan needs a proximate link to harm.*

BASIS AND LIMITS

Constitutional basis

→ derived mainly from **Art 19(1)(a)** (speech) and **19(1)(b)** (assembly); connected to **19(1)(c)** (association)

→ protests concern **life, livelihood, dignity**, so also linked to **Art 21**

→ since parent rights are subject to **reasonable restrictions**, so is protest; the task is balancing **peaceful protest** with **public order** and others' rights

AAA-21 — Protest roots: Art 19(1)(a) speech · 19(1)(**b**) assembly · 19(1)(c) association, plus Art 21. (own mnemonic)

LANDMARK CASES

Case	Held
Himat Lal K. Shah v. Commissioner of Police (1973)	assembly right is **not an unrestricted right to protest anywhere, any way**; State may **regulate meetings and processions**, but **no general or arbitrary ban** on peaceful assemblies in all public places
S. Rangarajan (1989)	expression cannot be suppressed on **illusory, imaginary or remote** threats to public order; need a **proximate connection** with anticipated harm
Amit Sahni v. Commissioner of Police (2020) (Shaheen Bagh)	protest must be balanced with public order and others' rights; **no indefinite occupation or blockage of public roads**

Criticism of Amit Sahni

→ **disruption is natural** to many protests; society must show **reasonable tolerance** of inconvenience, else the right becomes **hollow**

→ but **public inconvenience is not an extra ground** in Art 19(3); any restriction must be justified within the Constitution and law

Balance: assembly is a Fundamental Right; restrict only within constitutional limits; protect **democratic mobilisation and dissent** as well as public order.

CURRENT AFFAIRS TO ADD (VERIFY)

July 2026 magazine, "Right to Protest": the **NEET protest march**; the SC observed that **peaceful protest is guaranteed**. Prelims fodder: **Art 19 is for citizens only**; **"public order" was inserted by the First Amendment, 1951**.

September 2026 magazine: the SC used **Art 142** to **quash FIRs** against students in the **NEET-UG 2026 protest**. PYQ 2019 on Art 142 and PYQs on free speech, hate speech and films are noted there. Check the order before quoting.

HRA-P — Case order: Himat Lal (1973) → Rangarajan (1989) → Amit Sahni (2020). (own mnemonic)

Recall drill: cover and answer

Protest rooted in	Art 19(1)(a), (b), (c) and Art 21	Himat Lal 1973	regulate, but no blanket ban on assemblies
Rangarajan 1989	proximate link needed; no illusory threats	Amit Sahni 2020	Shaheen Bagh; no indefinite road blockage
Critics say	tolerate inconvenience or the right is hollow	Art 19 holders	citizens only
First Amendment 1951 added	"public order" (verify)		